



U.S. Department
of Transportation
**Research and
Special Programs
Administration**

400 Seventh St., S.W.
Washington, D.C. 20590

OCT 30 2002

DOT-E 9162
(FIFTH REVISION)

EXPIRATION DATE: September 30, 2004

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: Sunoco Pipeline L.P.
Tulsa, Oklahoma
(Former grantee: Sun Pipe Line Company)
2. PURPOSE AND LIMITATION:
 - a. This exemption authorizes the transportation in commerce of a non-DOT specification container described as a meter prover, containing those Class 3 materials identified in paragraph 6 below. This exemption provides no relief from any Hazardous Materials Regulation (HMR) other than as specifically stated herein.
 - b. The safety analyses performed in development of this exemption only considered the hazards and risks associated with transportation in commerce.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 173.242 in that a non-DOT specification bulk packaging is authorized except as specified herein.
5. BASIS: This exemption is based on the application of Sun Pipe Line Company dated October 1, 2002, submitted in accordance with § 107.109 and additional information dated October 30, 2002.

6. HAZARDOUS MATERIALS (49 CFR § 172.101):

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Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Flammable liquid, n.o.s.	3	UN1993	II, III
Petroleum Crude Oil	3	UN1267	II, III

7. SAFETY CONTROL MEASURES:

a. PACKAGING - Packaging prescribed is a non-DOT specification container described as a mechanical displacement meter prover mounted on a trailer complying with Sun Pipe Line Company drawings C-2209 dated September 16, 1983, C-2214 dated December 2, 1983, C-2213-A dated February 19, 1991, and C-2213 revised piping drawing dated May 26, 1998, on file with the Office of Hazardous Materials Exemptions and Approvals (OHMEA). Each prover consists of schedule 40 pipes of welded and bolted flange construction having an internal volume varying from 42 to 154 U.S. gallons, designed and constructed in accordance with ANSI Standard B31.4. In addition:

1. The bumper for the trailer must meet the requirements of § 178.340-8(b) and 393.86.
2. The pressure rating as determined from the pipe component with the lowest pressure rating must be marked on each trailer.
3. During transportation the pressure in the prover must not exceed 25 percent of the marked pressure rating and may not contain more than 120 U.S. gallons.
4. NO NEW CONSTRUCTION IS AUTHORIZED.

b. TESTING - Each prover must be visually reinspected once a year and retested once every 5 years at not less than 75 percent of the prover's design pressure.

c. OPERATIONAL CONTROLS - Drivers must have been instructed in the necessary safeguards and proper response procedures for any unusual delay, fire, or accident.

8. SPECIAL PROVISIONS:

a. A person who is not a holder of this exemption who receives a package covered by this exemption may reoffer it for transportation provided no modifications or changes are made to the package and it is reoffered for transportation in conformance with this exemption and the HMR.

b. A current copy of this exemption must be maintained at each facility where the package is offered or reoffered for transportation.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.

10. MODAL REQUIREMENTS: A current copy of this exemption must be carried aboard each motor vehicle used to transport packages covered by this exemption.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.

- o Registration required by § 107.601 et seq., when applicable.

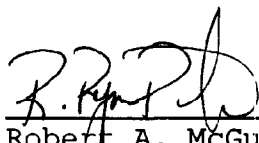
Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect.

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12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (Sections 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incident involving the package and shipments made under the terms of this exemption.

Issued in Washington, D.C.:



for Robert A. McGuire
Associate Administrator for
Hazardous Materials Safety

OCT 30 2002
(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

Copies of this exemption may be obtained by accessing the Hazardous Materials Safety Homepage at <http://hazmat.dot.gov/exemptions> Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

PO: sln